

§15.4.6. Time lapse between similar applications

No application for a use permit for the same lot shall be considered by the County Board within a period of 360 days from its last consideration. This provision, however, shall not impair the right of the County Board to propose a use permit on its own motion.

§15.4.7. Administrative change

The zoning administrator may approve minor modifications to approved use permits which comply with the spirit of this zoning ordinance, the intent of the County Board in its approval of the use permit and the general purpose of the Comprehensive Plan for the development of the area.

§15.5. Site Plans

§15.5.1. General

A use requiring site plan approval is a special exception use approved in accordance with the incentive zoning process in, and subject to the regulations of this section. Every applicant for site plan approval shall file with his application a proposed site plan in compliance with Administrative Regulation 4.1, site plan approval, as amended.

§15.5.2. Application requirements

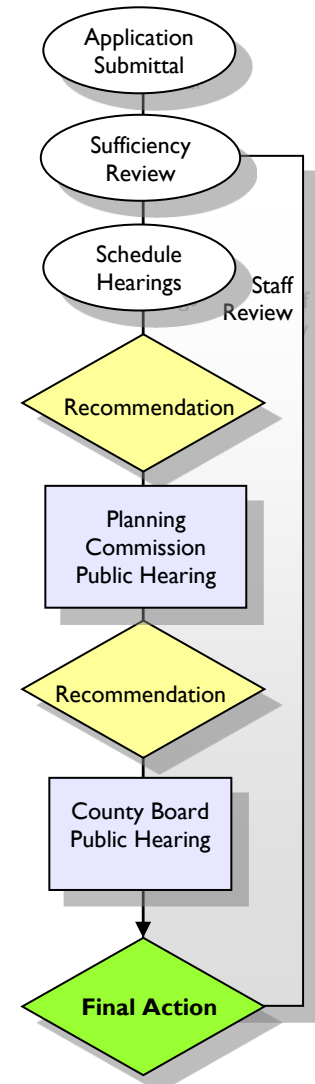
Every application for a site plan approval or a major site plan amendment shall be filed in writing with the zoning administrator a minimum of 120 days before the public hearing; however, the County Board may, on its own motion, schedule hearings for a date which is less than 120 days from the date of filing the application.

§15.5.3. Scheduling

When a completed site plan or major site plan amendment is filed, the zoning administrator shall notify, as required in Administrative Regulation 4.1, the applicant of the scheduled date of the public hearing for the site plan or major site plan amendment, which date will be up to 180 days after filing. The date of filing of a complete application shall be determined as set forth in Administrative Regulation 4.1, based on whether the requirements of Administrative Regulation 4.1, have been met. Public hearings for site plans, adaptive reuse amendments, and major site plan amendments shall be the first regularly scheduled County Board meeting of each month, except the County Board may establish, on its own motion, another County Board meeting for the hearing. Public hearings for minor site plan amendments shall be as required for use permits under §15.4. Major site plan amendments, adaptive reuse amendments, minor site plan amendments, and administrative changes shall be defined as follows:

A. Major amendment

Unless otherwise considered an adaptive reuse amendment as set forth in §15.5.3.D, any modification of the approved site plan which meets one or more of the following criteria:



1. Principal use of the building would change in more than five percent of the total floor area of the building.
2. Density would change by more than five percent of the total floor area of the building.
3. Building height would change by more than 12 feet.
4. Gross floor area of the first floor would change in more than 20 percent of the area of the first floor.
5. Change in the site area which is used to calculate density.
6. Any change which the zoning administrator determines is similar in significance to the above stated changes.

B. Minor amendment

Any modification of the approved plan which is not considered a major amendment or an adaptive reuse amendment and which cannot be approved administratively is a minor amendment. The subdivision of land involved in an approved site plan is a minor amendment, except, that if the following criteria are met, such subdivision may be approved as an administrative change by the zoning administrator:

1. Density allocation is consistent with the zoning and approved site plan;
2. Parking is consistent with the zoning and the approved site plan;
3. Public improvements are consistent with the zoning and approved site plan; and
4. Clear evidence exists that all conditions of the approved site plan have been met or are bonded in a manner acceptable to the county manager.

C. Administrative change

Any minor modification of the approved site plan which complies with the spirit of this zoning ordinance, the intent of the County Board in its approval of the site plan, and the general purpose of the Comprehensive Plan for the development of the area. Administrative changes may be approved by the zoning administrator.

D. Adaptive reuse amendment

1. Modification of an approved site plan that meet all the following criteria:
 - (a) An adaptive reuse amendment has not been previously approved for the subject site plan;
 - (b) Approved principal use of the existing building is at least 50 percent office, as set forth in §12.2.5.C;
 - (c) More than 50 percent of the office gross floor area within the building would change to an alternative use allowed in the underlying zoning district;
 - (d) Increases in density only in accordance with §15.5.9.D;
 - (e) Clear evidence exists that all conditions of the approved site plan have been met or are bonded in a manner acceptable to the County Manager.
2. Where any of the following modifications to an approved site plan are proposed, the amendment shall not be eligible as an adaptive reuse amendment:
 - (a) Vacation of or amendments to existing public easements.

- (b) Change to any affordable housing, community facilities, sustainable design or other public priorities provided for by the approved site plan, where density or height was previously approved by the County Board under §15.5.9.
- (c) A reduction of commitments required by previous County Board approvals.

§15.5.4. Information required

Every applicant for a site plan approval shall file with his application information as defined in §15.1.4.

§15.5.5. Action by County Board

The County Board shall approve and accept a site plan, including any additional height and density, if the County Board shall find that the improvement and development proposed by the site plan:

- A. Is consistent with the Arlington County Comprehensive Plan and any applicable and relevant adopted County Board plans and policies, and with the uses permitted and use regulations of the district as set forth in this zoning ordinance or as the same may be modified by the County Board as provided herein;
- B. Functionally relates to other structures permitted in the district and will not be injurious or detrimental to the property or improvements in the neighborhood; and
- C. Is so designed and located that the public health, safety and welfare will be promoted and protected.

§15.5.6. Conditions of approval

In approving and accepting a site plan, the County Board may designate such conditions in connection therewith as will, in its opinion, assure that the features, design elements, uses, services, and amenities of the application, including but not limited to affordable housing and provisions for community facilities are provided in return for the additional density and height approved beyond that permitted by right in the zoning district and for the other development benefits provided to the applicant, and that the improvement and development will conform to the approved requirements and modifications of the site plan, including but not limited to provisions for protection of abutting property, and including property across the street, the expiration of said site plan approval after a specified period of time, access and design for off-street parking and loading.

§15.5.7. Modifications and transfers

A. Modification of use regulations

The County Board may, in appropriate cases, modify the use regulations, except for height and density, in harmony with the general purpose and intent of the district taking into consideration the following:

1. Provisions made for open space and other environmental amenities;
2. Grade, direction and intensity of traffic on streets in the area;
3. Relationship to existing or permitted uses and buildings abutting or across the street from the subject property;
4. Particular dimensions, grade and orientation of the site; and

5. Particular construction problems and techniques.

B. Transfer of development rights

In approving and accepting a site plan, the County Board may, subject to such conditions as the County Board may approve, permit the dedication of density or other rights to develop, as determined by the County Board, from one or more parcels that are not the subject of a particular site plan application to one or more parcels of property that are the subject of that same site plan application for purposes of, among others, open space, historic preservation, affordable housing, community recreation, and/or community facilities. In considering the approval of such dedication, the County Board shall consider the appropriateness of the dedicated density or other development rights at the proposed location, and whether the dedication is consistent with this zoning ordinance, approved land use policies and plans, and the public health, safety and welfare generally.

§15.5.8. Affordable dwelling units for increased density within the zoning district regulations

A. Applicability

1. In exchange for approval by the County Board of a site plan containing density equal to or greater than 1.0 F.A.R., affordable dwelling units (ADUs), or optional contributions to support ADUs in lieu thereof, shall be required in accordance with the following provisions of this subsection.
2. The following provisions apply to site plan applications that are consistent with the General Land Use Plan (GLUP). The provisions also apply to site plan applications that include a rezoning application resulting in a use that was not permitted by-right under the prior zoning category provided that the newly permitted use is included within the existing GLUP designation for the site.
3. Site plan amendment applications that result in the demolition and rebuilding of a site plan project shall be subject to the requirements hereof at the time of redevelopment. The applicable requirements shall apply only to density that is replaced or rebuilt and any increased density, with the exception of density as set forth in §15.5.9.D. They shall not apply to rehabilitation or renovation or adaptive reuse amendment of development subject to site plan approval pursuant to §15.5.

B. Exception

Site plans containing less than 1.0 F.A.R. shall be exempt from the ADU requirements hereof.

C. Options for meeting ADU requirements

Once a site plan has been approved, the site plan applicant must select one of the following options for meeting the ADU requirements:

1. On-site units

Unless a different option is selected by the applicant, ADUs shall be provided on-site as part of the site plan project, the total gross square footage of which shall be 5 percent of the GFA above 1.0 F.A.R.; or

2. Off-site nearby

ADUs shall be provided off-site near the site plan project, the total gross square

footage of which ADUs shall be 7.5 percent of the GFA of the site plan project above 1.0 F.A.R. For purposes of this subsection, near the site shall mean as follows: if the site plan project is in a Metro station Area, the off-site units shall be within 0.5 miles from any Metro station; if the site plan project is not in a Metro station Area, the off-site units shall be within 0.5 miles of the project; or

3. Off-site elsewhere

ADUs shall be provided in locations in the county other than the locations provided for subsections §15.5.8.C.1 and §15.5.8.C.2, above, the total gross square footage of which ADUs shall be 10 percent of the GFA of the site plan project above 1.0 F.A.R.; or

4. Cash contribution

- (a) The applicant shall make a cash contribution to the Affordable Housing Investment Fund calculated as follows for each of the described tiers;
 - (1) \$1.50 per square foot of GFA for first 1.0 F.A.R.
 - (2) \$4.00 per square foot of GFA from 1.0 F.A.R. to 3.0 F.A.R. for residential projects and \$4.00 per square foot of all GFA above 1.0 F.A.R. in commercial projects (including hotel and retail).
 - (3) \$8.00 per square foot of GFA above 3.0 F.A.R. for residential projects.
 - (4) For mixed-use projects, cash contributions shall be calculated by applying the proportionate amount of commercial and residential GFA to each tier.
- (b) The cash contribution will be indexed to Consumer Price Index for Housing in the Washington-Baltimore MSA as published by the Bureau of Labor Statistics and adjusted annually, beginning January 2007. Revised amounts apply only to site plans filed after the adjustment date. Amounts for the calculation of the cash option are established at the time the site plan application is filed.

D. County manager action

The applicant's plan for meeting the ADU requirements on-site or off-site must be confirmed or approved by the county manager or his designee, and all necessary documents executed, prior to the issuance of the first certificate of occupancy. The county manager or his designee will act on approval request within 30 days.

E. Provision for off-site ADUs

An applicant may submit a proposal for off-site ADUs that deviates from the requirements above. Such proposals shall be reviewed by the housing commission which, after a public hearing on the proposal, shall make a report of its review to the county manager. After the housing commission's consideration of the alternative plan, the county manager, or his designee, may approve or reject it administratively. In the event that the plan is rejected, the applicant may request that the County Board consider the alternative as a site plan amendment.

F. Substitution of ADUs

On sites where the County Board has determined that there are other competing public priorities identified in county plans, studies, policies, or other documents that are addressed by the site plan application, the County Board may, at the time of site plan approval, approve the total or partial substitution of the ADUs required hereunder.

G. Term

ADUs shall be committed for a 30-year term, affordable at 60 percent of the area median income. ADUs must meet minimum habitability standards established by the county.

H. Proposals for change of GLUP designation

Site plan applications that include an application to change the GLUP designation of the site may be subject to an affordable housing requirement in addition to the above ADU requirement. Such affordable housing requirements shall be addressed separately in the process of the County Board's consideration of the approval of the site plan.

I. Proposals for elimination of existing affordable housing

Site plan applications that result in the elimination of existing affordable housing will address replacement of the housing in the process of the County Board's consideration of the approval of the site plan.

J. Conflicts

In the event of conflict between the provisions of this §15.5 and any other section of the Zoning Ordinance, provisions of this section shall control.

§15.5.9. Additional building height and density above the zoning district regulations and the General Land Use Plan

A. Affordable housing

1. In considering the approval of a site plan, the County Board may permit additional building height and density for low- or moderate-income housing only where a proposed site plan project is in compliance with all of the requirements specified within §15.5.9.
2. The application includes a low- or moderate-income housing plan that includes the following information and any other items that are determined by the County Board to be pertinent for that particular site plan:
 - (a) Number of total housing units provided under the site plan.
 - (b) Number of total housing units in the additional housing density.
 - (c) Number of low- or moderate-income housing units provided under the proposed site plan.
 - (d) Income levels of targeted families for low- or moderate-income housing units.
 - (e) The proposed rents and guarantee of limits on future rent increases or sales prices and the proposed affordability thereof for low- or moderate-income housing units.
 - (f) Marketing plan for the low- or moderate-income housing units.
 - (g) Location of low- or moderate-income housing units.
 - (h) Sizes of low- or moderate-income housing units.
 - (i) Bedroom counts of low- or moderate-income housing units.
 - (j) Amenities provided for low- or moderate-income households.
 - (k) Statement of consistency with County Board adopted housing policy, goals, principles and relevant staff guidelines for the use of additional housing density.

units shall also include a variety of housing units and design and further the goals of the Affordable Housing Master Plan. Consideration of such design may include, but not limited to, the provision of family housing units, housing for the elderly, housing for households of low- or moderate-income and such variety of design as provided by townhouse or terraced construction in association with the high-rise development.

B. Community facilities

In considering the approval of a site plan, the County Board may permit additional height and/or additional residential, office, and/or hotel density above the amounts specified for site plan development in the zoning district regulations for the provision of community facilities. Consideration of such community facilities may include, but not be limited to, the provision of space for a library; fire or police station; public school facility; public transportation facilities and improvements; public open space; or a community recreation or health center. Such community facilities may be provided on-site or at appropriate off-site locations.

C. Sustainable Design

In considering the approval of a site plan, the County Board may permit additional residential, office, and/or hotel density in an amount identified in adopted sustainable design incentive program policies.

D. Adaptive Reuse

In considering the approval of an adaptive reuse amendment as set forth in §15.5.3.D, the County Board may permit additional height and/or additional density above the amounts specified for site plan development in the zoning district regulations, only for the following, provided the County Board finds that the additional height and/or density is consistent with the change of use, overall reinvestment in the building, and enhances the public realm:

1. Modification of building density

- (a) Density above the underlying zoning district achieved without modifications to building height other than that provided in §15.5.9.D.2(a) or form other than that provided in §15.5.9.D.1(e) below;
- (b) Rooftop uses that were not included in the approved site plan or were previously excluded from gross floor area;
- (c) Previously excluded density in the interior of the building;
- (d) Building façade changes that affect exterior wall widths;
- (e) Additions to, or enlargement of the building not to exceed two stories above grade;
- (f) Addition of mezzanine spaces;
- (g) Addition of gross floor area with the enclosure of balconies or terraces;
- (h) The conversion of gross parking area, as determined by the County Board to be unnecessary to the functioning of the building per existing minimum parking requirements in the ordinance or County Board policy, to gross square footage; and
- (i) Other increases in density the County Board finds are in a similar purpose and level of impact as those listed above.

3. Modification of building height

- (a) In considering the approval of a site plan, the County Board may permit additional building height above that specified for site plan development in the zoning district regulations for the provision of low- or moderate-income housing.
- (b) In the RA14-26, RA8-18, and RA6-15 districts on lots which are identified on the adopted General Land Use Plan as either: (1) within a Housing Conservation District as identified on the General Land Use Plan Map, or (2) outside of a planning district as identified on the General Land Use Plan Map, the County Board may, through site plan approval pursuant to §15.5, modify the maximum building height regulations specified in §12.3.7. Under no circumstances shall the County Board modify the maximum building height regulations as specified in §15.5.9.A.3(b) in a manner that would result in additional building height beyond 60 feet above the height permitted in §12.3.7, exclusive of mechanical penthouses. Such modifications may be approved when the County Board finds that:
 - (1) The proposed development will result in the provision of 100% of the dwelling units providing low- or moderate-income housing. In instances where less than 100% of the dwelling units would be considered low- or moderate-income housing and the development project is overall consistent with the Affordable Housing Master Plan, the County Board may modify the maximum building height regulations as specified in §15.5.9.A.3(b);
 - (2) The applicant's site layout and proposed building heights have been designed in a manner to establish effective transitions to lower density residential neighborhoods using site topography, landscaping, architectural façade treatments, graduated building heights, increased setbacks, or other similar measures.
- (c) Notwithstanding the modification provisions specified in §15.5.9.A.3, under no circumstances shall the County Board modify maximum building heights for the C-2, C-3, and C-R districts under this subsection.

4. Modification of building density

In considering the approval of a site plan, the County Board may permit additional residential, office, and/or hotel density above the amount specified for site plan development in the zoning district regulations for the provision of low- or moderate-income housing units.

5. Guarantees

That adequate guarantees exist as to the continued availability of such units to households of low- or moderate-income for a minimum of 30 years, or for such other time period as may be approved by the County Board.

6. New units approved by County Board

New low- or moderate-income housing units may be constructed either on-site or at appropriate off-site locations approved by the County Board or may be provided by means of in-lieu tax relief/rent supplement payments at levels approved by the County Board. Such low- or moderate-income housing, which may be either new or existing construction, may also be provided on abutting sites or on sites which abut except for the existence of a public street. New low- or moderate-income housing

2. Modification of building height

- (a)** Additional height only for the provision of rooftop amenities.

E. Other Public Priorities

On sites where the County Board has determined there are other public priorities identified in the Arlington County Comprehensive Plan or other adopted County Board plans and policies, the County Board may permit additional density above the amount specified for site plan development in the zoning district regulations.

§15.5.10. Modification of approved site plan

After a site plan has been approved and accepted by the County Board, amendments to the site plan which are consistent with the general purpose and intent of the district may be considered. Deviation from an approved site plan, site plan amendment or administrative change without the written approval of the zoning administrator or specific action by the County Board shall, at the discretion of the County Board, void the plan and the County Board may require the applicant to resubmit a new site plan for consideration by the County Board.

§15.5.11. Clarendon Revitalization District

See §9.2 for information on density increases in the Clarendon Revitalization District.